

where the trustee has sold it with notice, by the party who purchased (*b*), the *cestui que trust* on the one hand repaying the price at which the trustee bought, with interest at 4 per cent. (*c*), and the trustee or purchaser on the other accounting for the profits of the estate (*d*), but not with interest (*e*), and, if he was in actual possession, being charged with an occupation rent (*f*). [But if the consideration passing from the trustee is not wholly pecuniary, and the *cestui que trust* has by subsequent dealings put it out of his power to restore to the trustee the benefits derived from him, he has lost his right to set aside the transaction (*g*).]

2. **Allowances for repairs.** — The trustee will have all just allowances made to him for *improvements and repairs* which are substantial and lasting (*h*), or such as have a tendency to bring the estate to a better sale (*i*), as in one case for a mansion house erected, plantations of shrubs, &c. (*j*); and in estimating the improvements, the buildings pulled down, if they were incapable of repair, will be valued as old materials, but otherwise they will be valued as buildings standing (*k*). Should the property have been *deteriorated* by the acts of the trustee, his purchase-money will suffer a proportionate reduction (*l*). [And if the subject-matter of the sale be a business sold as a going concern, and the purchasing trustee carry it on under his own personal direction, on the sale being set aside he will be allowed to deduct from

(*b*) *Attorney-General v. Lord Dudley*, G. Coop. 146; *Dunbar v. Tredennick*, 2 B. & B. 304.

(*c*) *Watson v. Toone*, 6 Mad. 153; *Ex parte James*, 8 Ves. 351, *per* Lord Eldon; *Whelpdale v. Cookson*, stated from *R. L. Campbell v. Walker*, 5 Ves. 682; *Hall v. Hallet*, 1 Cox, 134, see 139; *York Buildings' Company v. Mackenzie*, *ubi supra*, &c.

(*d*) *Ex parte James*, 8 Ves. 351, *per* Lord Eldon; *Ex parte Lacey*, 6 Ves. 630, *per eundem*; *Watson v. Toone*, Mad. 153; *Whelpdale v. Cookson*, *York Buildings' Company v. Mackenzie*, *ubi supra*.

(*e*) *Macartney v. Blackwood*, 1 Ridg. Knapp & Sch. 602.

(*f*) *Ex parte James*, 8 Ves. 351, *per* Lord Eldon.

[(*g*) *Re Worssam*, 46 L. T. N. S. 584; *Dimsdale v. Dimsdale*, 3 Dr. 556, 577.]

(*h*) *Ex parte Hughes*, 6 Ves. 624, 625; *Ex parte James*, 8 Ves. 352; *Campbell v. Walker*, 5 Ves. 682; *Davey v. Durrant*, 1 De G. & J. 535; *King v. Anderson*, 8 I. R. Eq. 625, see 636.

(*i*) *Ex parte Bennett*, 10 Ves. 400.

(*j*) *York Buildings' Company v. Mackenzie*, 8 B. P. C. 42.

(*k*) *Robinson v. Ridley*, 6 Mad. 2.

(*l*) *Ex parte Bennett*, 10 Ves. 401.